

Advanced Directives

Living Will and Healthcare Proxy

You can make decisions and issue directives now that will ensure that your wishes are followed in the event you become incapable of making important decisions about the medical care you receive. It is the policy of Rochester Regional Health to follow the wishes you have expressed in a properly executed Health Care Proxy and/or Living Will.

This section contains information and forms for two kinds of Advance Directives:

- [Health Care Proxy](#) - designating another person to make medically related decisions for you
- [Advance Care Directive \(Living Will\)](#) - designating your future health care treatment choices

This material was provided by the New York State Department of Health. Please read the instructional material and forms carefully, make as many copies as you need and discuss them with your family, doctor and close friends.

Your Right to Decide About Treatment

Adults in New York State have the right to accept or refuse medical treatment, including life-sustaining treatment. Our Constitution and state

laws protect this right. This means that you have the right to request or consent to treatment, to refuse treatment before it has started, and to have treatment stopped once it has begun.

Planning in Advance

Sometimes because of illness or injury, people are unable to talk to a doctor and decide about treatment for themselves. You may wish to plan in advance to make sure that your wishes about treatment will be followed if you become unable to decide for yourself for a short or long period. If you don't plan ahead, family members or other people close to you may not be allowed to make decisions for you and follow your wishes.

In New York State, appointing someone you can trust to decide about treatment if you become unable to decide for yourself is the best way to protect your treatment wishes and concerns. You have the right to appoint someone by filling out a form called a Health Care Proxy. A copy of the form and information about the Health Care Proxy are available from your healthcare provider as well as this website.

If you have no one you can appoint to decide for you, or do not want to appoint someone, you can also give specific instructions about treatment in advance. Those instructions can be written and are often referred to as a Living Will.

Deciding About Cardiopulmonary Resuscitation (CPR)

Your right to decide about treatment also includes the right to decide about cardiopulmonary resuscitation (CPR). CPR is an emergency treatment to restart the heart and lungs when your breathing or circulation stops.

Sometimes doctors and patients decide in advance that CPR should not be provided, and the doctor gives the medical staff an order not to resuscitate (DNR order). If your physical or mental condition prevents you from deciding about CPR, someone you appoint, your family members, or others close to you can decide. A brochure on CPR and your rights under New York law is available from your health care provider.

Organ and Tissue Donation

There is one more thing to consider while doing advanced planning for health care - organ and tissue donation. By completing an anatomical gift card and notifying your family and agent, you can make a gift of improved quality of life or even life itself to another person in the event of your death.

Thousands of people wait each year for transplants which, today, are very successful. But the need is much greater than the organs available.

Patients wait for these organs...hearts, livers, and kidneys. They wait for tissues...bone, corneas and heart valves. Donated organs and tissues from one person can help many people...to see clearly again, to walk on a strong leg, to stay off a kidney dialysis machine, to live!

The medical condition of the organs and tissues at the time of death determines what can be donated. Since we don't know the future, all of us should consider ourselves possible donors. We can pledge now to be a future donor.

There are never costs to the organ or tissue donor's family for the donation.

Major religious groups encourage organ donation. Discuss this, if you wish, with your clergy.

Donation is a surgical procedure respectful of the body. There is no need to change your desired funeral arrangements. An open casket service is possible.

By completing an anatomical gift card and notifying your family and agent, you can make a gift of improved quality of life or even life itself to another person in the event of your death.

For further information visit [MFT Biologics](#) or [Lions Eye Bank at Rochester](#).

Frequently Asked Questions

Advance directives are verbal or written instructions that are valuable in the event of an incapacitating illness or injury. One type of advance directive is a Healthcare Proxy. The New York State Healthcare Proxy Law allows you to appoint someone you trust to make health care decisions for you if you lose the ability to make those decisions yourself. You may give the person you select as your health care agent as little or as much authority as you want. You may also give your agent instructions that he or she has to follow. The following frequently asked questions can help in understanding the importance of a Healthcare Proxy.

What is a Healthcare Proxy?

A law, called the New York healthcare proxy law, allows you to appoint someone you trust - for example, a family member or close friend - to decide about treatment if you lose the ability to decide for yourself. You can appoint someone by signing a form called a Healthcare Proxy.

Why should I choose a healthcare agent?

Appointing an agent lets you control your medical treatment by:

- allowing your agent to stop treatment when he or she decides that is what you would want or what is best for you under the circumstances
- choosing one family member to decide about treatment because you think that person would make the best decisions or because you want to avoid conflict or confusion about who should decide
- choosing someone outside your family to decide about treatment because no one in your family is available or because you prefer that someone other than a family member decide about your health care

How can I appoint a healthcare agent?

All competent adults can appoint a healthcare agent by signing a form called a Healthcare Proxy. You don't need a lawyer, just two adult witnesses.

When would my healthcare agent begin to make healthcare decisions for me?

Your health care agent would begin to make healthcare decisions after your doctor decides that you are not able to make your own healthcare decisions.

Why do I need to appoint a healthcare agent if I'm young and healthy?

A healthcare agent can act on your behalf if you become even temporarily unable to make your own healthcare decisions (such as might occur if you are under general anesthesia or have become comatose because of an accident).

What decisions can my healthcare agent make?

Unless you limit your healthcare agent's authority, your agent will be able to make any treatment decision that you could have made if you were able to decide for yourself. Your agent can agree that you should receive treatments, choose among different treatments, and decide that treatments should not be provided, in accord with your wishes and interests. If your health care agent is not aware of your wishes about artificial nutrition and hydration (nourishment and water provided by feeding tubes), he or she will not be able to make decisions about these measures. Artificial nutrition and hydration are used in many circumstances, and are often used to continue the life of patients who are in a permanent coma.

How will my healthcare agent make decisions?

You can write instructions on the proxy form. Your agent must follow your oral and written instructions, as well as your moral and religious beliefs. If your agent does not know your wishes or beliefs, your agent is legally required to act in your best interests.

Who will pay attention to my agent?

All hospitals, doctors and other health care facilities are legally required to obey the decisions by your agent. If a hospital objects to some treatment options (such as removing certain treatment) they must tell you or your agent **in advance**.

What if my healthcare agent is not available when decisions must be made?

You can appoint an alternate agent to decide for you if your health care agent is not available or able to act when decisions must be made.

Otherwise, healthcare providers will make treatment decisions for you that follow instructions you gave while you were still able to do so. Any instructions that you write on your Healthcare Proxy form will guide health care providers under these circumstances.

What if I change my mind?

It is easy to cancel the proxy, to change the person you have chosen as your health care agent, or to change any treatment instructions you have written on your Healthcare Proxy form. Just fill out a new form. In addition, you can require that the Healthcare Proxy expire on a specified date or if certain events occur. Otherwise, the Healthcare Proxy will be valid indefinitely. If you choose your spouse as your health care agent and you get divorced or legally separated, the proxy is automatically cancelled.

Can my healthcare agent be legally liable for decisions made on my behalf?

No. Your healthcare agent will not be liable for treatment decisions made in good faith on your behalf. Also, he or she cannot be held liable for costs of your care, just because he or she is your agent.

Is a Healthcare Proxy the same as a Living Will?

No. A Living Will is a document that provides specific instructions about health care treatment. It is generally used to declare wishes to refuse life-sustaining treatment under certain circumstances.

Where should I keep the proxy form after it is signed?

Give a copy to your agent, your doctor and any other family members or close friends you want. You can also keep a copy in your wallet or purse.

What about the “Medical Orders for Life-Sustaining Treatment” (MOLST) document?

Individuals/patients have a right to make their own health care decisions. The “Medical Orders For Life-Sustaining Treatment” (MOLST) is a document designed to help health care providers honor the treatment wishes of their patients. It is a physician order form. The MOLST is not intended to replace an advance directive document (i.e., healthcare proxy form or living will).

The MOLST form was created by a multi-disciplinary community-wide panel of health care providers and consumers in the Rochester, NY area and is intended to give patients the opportunity to express their preferences with regard to cardiopulmonary resuscitation, mechanical intervention, and other life-sustaining treatment. The document was modeled after a similar form that has been in use for ten years in the state of Oregon, the POLST (Physician Orders for Life-Sustaining Treatment), and has been adapted for use in New York State where there are special legal and policy considerations guiding these decisions.